

Terms And Disclaimer Language For Counsel Review

Document type: draft legal and sales disclaimer language.

Status: not approved for external use.

Required action: counsel must review and approve before this language is used in contracts, order forms, pricing pages, public marketing pages, pilot agreements, onboarding flows, or customer communications.

Implementation status: planned legal/commercial control. This document is a counsel review packet, not evidence that counsel has approved the language.

Purpose

This document gives counsel a starting point for FeDril customer-facing terms and disclaimers. It is not legal advice and must not be treated as final contract language.

Counsel Review Checklist

Counsel should review:

- Product description and claim boundaries.
- No-CUI data posture and prohibited data language.
- Customer responsibilities.
- Pilot scope and conversion terms.
- Limitation of advice and professional-services disclaimers.
- CMMC and compliance-report language.
- Support handling for suspected prohibited data.
- Liability, indemnity, warranty, privacy, data-processing, and security terms.
- State law, venue, payment, renewal, termination, and refund language.

Current-State Verification For Counsel

Product/legal claim	Status	Evidence or limitation
FeDril is a software workspace for obligation tracking, task ownership, evidence metadata, readiness workflow tracking, reporting, and audit history.	Implemented product scope	Current UI and API expose these workflow areas.
No-CUI acknowledgement is enforced before contract document upload and evidence upload intent.	Implemented for upload workflows	Application services and focused tests prove upload-related server-side blocking.
Reports are workflow guidance only.	Implemented in UI and required in docs	Reports tab includes no-legal-advice/no-certification disclaimer.
Tenant isolation and permission checks exist for protected API routes.	Implemented pattern	Routes require permissions and tenant context; this packet does not replace a full security review.
Payment processing, refund policy, conversion credit, testimonials, partner referral terms.	Planned	Requires counsel/finance approval and implementation before public use.
Real CUI handling, secure CUI storage, CMMC certification, government approval.	Do not claim	Outside current MVP posture.

Draft Product Description

FeDril provides a software workspace for government contractor compliance management, including obligation tracking, task ownership, evidence metadata, readiness workflow tracking, reporting, and audit history.

FeDril is not a law firm, accounting firm, CMMC assessor, C3PAO, contracting authority, government agency, or certification body.

Draft No-CUI Data Term

The current FeDril MVP is No-CUI / compliance management only. Customer must not upload, paste, import, attach, store, transmit, or process real CUI, classified information, ITAR/export-controlled data, sensitive government-furnished information, credentials, passwords, secrets, private keys, unrestricted security logs, payroll records, SSNs, bank data, tax data, health data, disability data, sensitive incident details, or other prohibited sensitive information in FeDril.

Customer is responsible for ensuring that all data entered into FeDril is synthetic, redacted, non-sensitive, or otherwise permitted under the applicable order form and data posture.

Draft Professional Advice Disclaimer

FeDril does not provide legal advice, accounting advice, labor determinations, cybersecurity assessment determinations, contracting-officer determinations, government determinations, or CMMC certification. Customer is responsible for obtaining advice from qualified legal, accounting, labor, cybersecurity, government contracts, CMMC, SBA, or other subject-matter professionals as applicable.

Draft CMMC And Compliance Disclaimer

FeDril may help Customer organize readiness workflows, track evidence metadata, assign tasks, and generate reports. FeDril does not certify CMMC compliance, guarantee assessment success, determine official compliance status, or replace a C3PAO, assessor, attorney, CPA, consultant, contracting officer, or government authority.

Readiness reports, dashboard statuses, obligation records, and workflow labels are informational workflow aids unless separately reviewed and approved by qualified professionals. They must not be interpreted as pass/fail determinations, legal conclusions, certification decisions, or official government determinations.

Draft Customer Responsibility Clause

Customer is responsible for:

- Determining whether FeDril is appropriate for Customer's data and compliance use case.
- Ensuring prohibited data is not entered into FeDril.
- Reviewing all outputs before internal or external use.
- Maintaining its own compliance program, records, policies, security controls, and professional advisor relationships.
- Verifying source-backed obligations and report language before relying on them for customer, prime contractor, auditor, assessor, or government communications.

Draft Pilot Scope Clause

The guided pilot is limited to one agreed readiness workflow using synthetic, redacted, or non-sensitive data. Unless expressly agreed in writing, the pilot excludes real CUI handling, legal advice, accounting advice, labor determinations, CMMC certification, assessor determinations, custom integrations, GovCloud, FedRAMP, SSO, SCIM, and enterprise procurement support.

The pilot fee is non-refundable unless otherwise agreed in writing. If Customer converts to an annual subscription within the agreed conversion period, the pilot fee may be credited toward the first annual subscription according to the applicable order form.

Draft Support And Prohibited Data Clause

Customer must not include prohibited data in support tickets, emails, screenshots, chat messages, call recordings, or shared files. If Customer suspects prohibited data was entered into FeDril, Customer must stop using the affected workflow and notify FeDril using a non-sensitive description of the issue.

FeDril may suspend, restrict, delete, quarantine, or otherwise handle affected records as needed to protect the service, comply with law, preserve tenant isolation, or follow the applicable support and incident process.

Draft Marketing Claims Guardrail

Customer-facing materials must not state or imply that FeDril:

- Provides legal advice.
- Certifies compliance.
- Guarantees CMMC readiness or assessment success.
- Replaces a CMMC assessor, attorney, CPA, labor expert, contracting officer, or qualified advisor.
- Has government approval, authorization, or endorsement unless formally true and reviewed.
- Accepts or processes real CUI in the MVP.

Open Questions For Counsel

- What exact definition of "prohibited data" should appear in customer agreements?
- Should the pilot fee be refundable, non-refundable, or credit-only?
- What warranty disclaimer is appropriate for source-backed compliance content?
- What limitation of liability should apply to readiness reports and obligation records?
- What data-processing addendum is required for No-CUI customer metadata?
- What incident notification commitments are appropriate for suspected prohibited-data entry?
- What language is required for state privacy law, cybersecurity, and commercial SaaS contracting obligations?

Approval Record

Reviewer	Role	Decision	Date	Notes
TBD	Counsel	Pending	TBD	Required before external use.
TBD	Security owner	Pending	TBD	Required before external use.
TBD	Product owner	Pending	TBD	Required before external use.

Pre-Publication Checklist

Check	Pass condition
Counsel approval	Approval record is complete with date, decision, and approved version.
Security approval	Security owner confirms No-CUI, prohibited-data, support, incident, and upload language.
Product approval	Product owner confirms all product claims match implemented behavior.
Finance approval	Finance confirms pilot fee, refund, credit, taxes, and subscription transition.
Public-copy alignment	Pricing page, No-CUI policy, security page, demo script, and pilot offer use the approved terms.
Version control	Approved language is tagged or otherwise traceable before real sales use.